4 BROTHERS TRUCKING LLC
PO Box 5245, Bay Point, CA 94565
+1 (626) 814-5541 | office@4brotherstruck.com

SUB-HAULER INDEPENDENT CONTRACTOR PACKAGE

DBE | MBE | SB-PW Certified

The following items are required in order to work with 4 Brothers Trucking LLC as a Subhauler. Please complete this packet and forward all supporting documents within seven (7) business days. No dispatch will be given and payment may be delayed if any items are missing or outdated.

Required Documents Checklist

- ☐ Signed Subhauler Independent Contractor Agreement / AB-5 Declaration
- ☐ Certificate of Insurance - Auto Liability, GL, Umbrella/Excess (4 Brothers Trucking LLC as Additional Insured)
- ☐ Certificate of Workers' Compensation Insurance, if applicable
- ☐ Copy of Motor Carrier Permit with CA Number
- ☐ Proof of Participation
- ☐ Completed Motor Carrier of Property Certificate of Compliance (CHP 362)
- ☐ Copy of Driver License and current DMV printout
- ☐ Completed W-9 Form
- ☐ Copy of CHP inspection of truck (no more than 1 year old, if requested)
- ☐ Copy of DIR Registration Number
- ☐ Proof of Enrollment in CHP BIT Program
- ☐ Copy of Truck Registration

Subhauler Information

Last Inspection: _____ Exp Date: _____

Subhauler Name: _____ Truck #: _____

Date Signed: _____

Initials (read & understood): _____

SUBHAULER INDEPENDENT CONTRACTOR AGREEMENT

4 BROTHERS TRUCKING LLC

This Sub-Haul Independent Contractor Agreement ("Agreement") is entered into between 4 Brothers Trucking LLC ("Prime Carrier") and the undersigned ("Subhauler" or "Independent Contractor"), in consideration of the mutual promises contained herein. The parties agree as follows:

1. Transportation Services

Subhauler, as an independent contractor, agrees to transport freight for Prime Carrier as specified herein, and to furnish and maintain all necessary equipment and perform all services rendered for such transportation.

2. Costs and Indemnity

Subhauler shall pay all costs and expenses incidental to its own equipment used in the performance of transportation services, and shall indemnify and hold harmless Prime Carrier against any loss, damage, or expense arising from Subhauler's negligence or breach of this Agreement.

3. Workers' Compensation and Taxes

Subhauler understands that 4 Brothers Trucking LLC does not provide workers' compensation coverage for Subhaulers, and that Subhauler is required to carry its own policies. The same applies to Social Security taxes and any other taxes or deductions on Subhauler's employees. Subhauler acknowledges that neither Subhauler nor any party employed by Subhauler is eligible for coverage under any workers' compensation policy held by Prime Carrier, and waives any such claim.

4. Independent Contractor Status

Subhauler represents and warrants that it is an independent carrier and not an employee of Prime Carrier.

5. Loss, Damage, and Public Works Compliance

If Subhauler is involved, in whole or in part, in any loss or damage to freight transported, Prime Carrier may withhold payment to fulfill the obligation. Prime Carrier has no responsibility for fines, costs, or expenses incurred due to lack of proper markings or violations by Subhauler. All Subhaulers must comply with the public works contractor registration law (SB 854) and register with the Department of Industrial Relations (DIR). Subhauler is responsible for keeping accurate driver payroll records and shall provide certified payroll records to Prime Carrier as required.

6. Subhauler Warranties

Subhauler warrants that: (a) drivers furnished are competent, qualified, experienced in the construction trade, and meet all applicable laws, rules, and regulations; (b) all equipment is regularly maintained, in good repair, and meets all applicable laws, rules, and regulations.

7. Insurance Requirements

Subhauler shall carry: Auto Liability $1,000,000 CSL; Property Damage $1,000,000 CSL; General Aggregate $2,000,000; Products and Completed Operations Aggregate $2,000,000. Limits may be combined through General Liability and Umbrella/Excess Liability. Subhauler shall furnish Prime Carrier with a certificate of insurance and name 4 Brothers Trucking LLC as Additional Insured. Subhauler's insurance shall be primary, with thirty (30) days' written notice of cancellation. If pulling 4 Brothers Trucking LLC trailers, Subhauler shall procure physical damage coverage at its sole expense.

8. Freight Bills and Tags

(A) Drivers must text or email a clear copy of the signed freight bill/tag the same working day. Tags lacking the foreman's signature and sign-out time, or showing alterations, will not be accepted. Original top three (3) copies must be submitted within three (3) days of service. (B) Subhauler must use 4 Brothers Trucking LLC freight bills to guarantee payment. Citations received while operating 4 Brothers Trucking LLC equipment must be delivered the same day. (C) Original tags only - incomplete documentation will not be processed. Standby/breakdown/waiting time charges require an individual signature from the authorizing person. (D) Subhauler shall furnish Prime Carrier with a monthly statement by the 5th of the following month. (E) Subhaulers pulling 4 Brothers Trucking LLC trailers shall be paid on the 1st of the second month following work; Subhaulers using their own equipment shall be paid on the 8th of the second month. Tags submitted more than ten (10) days after service may be rejected. (F) 4 Brothers Trucking LLC will pay after complete payment is received from the contractor; back-charges may be applied if the contractor deducts from previously paid tags.

9. Authorized Deductions

Subhauler authorizes Prime Carrier to deduct from amounts owed: (A) service station charges, repairs, parts, tires, oil, etc. plus a $125 handling charge; (B) labor-related advances plus a 5% handling charge; (C) hourly pay only from job dispatch show-up to sign-out plus average travel; no payment for time added after foreman sign-out, altered times, or driver leaving without cause; (D) for canceled jobs with no work performed: 2 hours show-up time; (E) when work is performed: 4-hour day / 6-hour night minimums (or 6/8 if contractor pays more); (F) payment statement disputes must be raised within 5 business days of payment by email or text; (G) Subhauler compensated at no less than 90% of agreed pay rate; (H) Subhauler indemnifies Prime Carrier from all claims except payments due for transportation services; (I) certificate of insurance required before commencing services; (J) unauthorized additional trucks deployed without dispatch authorization will not be paid.

10. Administrative Handling Fee

Subhauler agrees to perform transportation services at the 4 Brothers Trucking LLC pay rate, less an eight percent (8%) administrative handling fee per job to cover dispatch, billing, collections, insurance verification, compliance administration, and other back-office services provided by Prime Carrier. Once Subhauler accepts the job at the applicable rate, Subhauler may not dispute the rate at the jobsite. Subhauler may not directly or indirectly contact the contractor regarding rates, billing, hours, loads, or tons.

11. Control of Work

Subhauler shall direct the operation of its equipment in all respects and shall determine the method, means, and manner of performance, including: when a load is picked up, who loads the vehicle, how the vehicle is loaded/tied down/covered/unloaded, rest stops, route selection, repair and fuel stops, time of delivery, working hours, and method of financing its vehicle(s).

12. Means and Methods

Prime Carrier is interested only in the results achieved by Subhauler and shall not control the means by which those results are obtained. Prime Carrier shall provide no training, instructions, or guidance. Subhauler shall use its own methods and skills, retaining exclusive authority to control and direct performance.

13. Trailer Lease and Charges

(A) If Prime Carrier furnishes trailers, Prime Carrier may deduct fifteen percent (15%) of the total rate. (B) Subhaulers pulling 4 Brothers Trucking LLC trailers may purchase parts, fuel, tires, and supplies from any supplier; Subhauler shall not incur indebtedness in the name of Prime Carrier without prior authorization. (C) Unauthorized charges to Prime Carrier's account may be deducted plus a 10% handling charge.

14. Indemnification, Carrier Status, and Subhauler Responsibilities

(14.1) Subhauler shall indemnify and hold harmless Prime Carrier and the project contractor from claims arising out of Subhauler's negligence, including bodily injury, property damage, verbal disputes or altercations, and attorneys' fees. (14.2) Prime Carrier acts as a motor carrier holding a valid California Motor Carrier Permit and USDOT registration. (14.3) Subhauler is an independent contractor, not an agent of Prime Carrier. Subhauler is responsible for all payroll taxes and contributions for its own employees. Subhauler shall provide W-9 before commencing services. Subhauler shall not assert any lien on cargo or equipment.

15. Permits and Inspections

Subhauler shall maintain a valid Motor Carrier Permit, CA Number, BIT inspection, and all CHP requirements throughout the term of this Agreement.

16. Continuing Agreement

This Agreement shall operate as a continuous contract covering transportation services performed by Subhauler for Prime Carrier.

17. Driver Employment by Subhauler

Subhauler warrants ownership of the described equipment. If Subhauler uses agents/employees to operate the vehicle, Subhauler is responsible for prevailing wages, taxes, workers' compensation, and union dues. Subhauler shall secure workers' compensation insurance for any driver employed and provide proof to Prime Carrier prior to employment. Prime Carrier provides no workers' compensation coverage. Subhauler is responsible for inquiring whether a job requires certified payroll reporting.

18. Load Responsibility

Subhauler is responsible for each load received and hauled, including overloading, spillage, and loss of load.

19. Dispatch Agency and Non-Solicitation

Subhauler appoints Prime Carrier as its dispatch agent. The relationship is non-exclusive - Subhauler may work with other carriers. Subhauler agrees not to directly or indirectly solicit or contract with the customers/construction companies introduced to Subhauler by Prime Carrier during this Agreement and for twelve (12) months following termination, with respect only to projects on which Subhauler performed services through Prime Carrier. Subhauler shall not use Prime Carrier's dump sites for any unauthorized purpose. This provision is intended to comply with California Business & Professions Code Section 16600 and shall be interpreted as narrowly as necessary to be enforceable.

20. Termination by Subhauler

Subhauler shall provide at least thirty (30) days' written notice prior to termination. Prime Carrier may withhold an amount sufficient to cover anticipated charges for up to sixty (60) days. Subhauler shall return all leased trailers to Prime Carrier's yard in clean condition.

21. Termination by Prime Carrier

Prime Carrier may terminate this Agreement upon one (1) week's notice for: excessive damage to equipment, improper maintenance, or failure to obey lawful and proper orders.

22. Dispute Resolution and Attorneys' Fees

In any action arising out of this Agreement, the prevailing party shall be entitled to recover reasonable attorneys' fees and costs from the non-prevailing party.

23. Governing Law and Venue

This Agreement shall be governed by California law without regard to its conflict-of-laws provisions. Venue for any dispute shall lie exclusively in the state or federal courts located in Contra Costa County, California.

24. Entire Agreement and Severability

This Agreement represents the full and complete understanding between the parties and supersedes all prior agreements. The invalidity of any provision shall not affect the remaining provisions.

Execution

Executed this _____ day of _____, 20_____ in Contra Costa County, California. By signing below, Subhauler acknowledges having read and understood all terms of this Agreement.

PRIME CARRIER - 4 Brothers Trucking LLC

Print Name:

Title:

Signature: Date:

SUBHAULER INDEPENDENT CONTRACTOR

Print Name:

Title:

Signature: Date:

4 BROTHERS TRUCKING LLC
PO Box 5245, Bay Point, CA 94565
+1 (626) 814-5541 | office@4brotherstruck.com

SUBHAULER GENERAL INFORMATION

Business & Personal Details

Subhauler Name:

DBA:

Address:

Home Phone: Mobile:

Email: CA Number:

Federal ID (EIN): Social Security #:

Driver License: DL Exp Date:

Medical Card: Med Exp Date:

Vehicle License: Hazardous Trans #:

If Pulling 4 Brothers Trucking LLC Trailers

Year: Make:

Model: License #:

Loss Payee: Exp Date:

Insurance Agent: Agent Phone:

Agent Address:

Type of Equipment (check all that apply)

☐ End Dump ☐ Transfer ☐ Super Dump ☐ Semi Bottom

Other Equipment:

Certifications

HRC SF: BART:

DIR #: Caltrans:

Union: Other:

Emergency Contact

Name: Phone:

Address:

Subhauler Signature

Print Name:

Signature: Date:

4 BROTHERS TRUCKING LLC
PO Box 5245, Bay Point, CA 94565
+1 (626) 814-5541 | office@4brotherstruck.com

MOTOR CARRIER OF PROPERTY CERTIFICATE OF COMPLIANCE

(California Highway Patrol Form CHP 362)

I, the undersigned, certify that the carrier named below holds a Motor Carrier Property Permit, a copy of which is attached. I further certify that I, or a company officer, will immediately notify the user of this company's services if the permit is suspended, revoked, or otherwise rendered invalid.

Carrier Name:

MCP Number: Valid Through:

Services Provided For:

Print Name: Title:

California Driver's License Number:

Signature: Date:

One copy of this certificate shall be provided to the contracting motor carrier; one copy shall be retained by the motor carrier of property. Copies shall be retained by both parties for the duration of the contract or period of service plus two years, and shall be presented for inspection upon request of an authorized employee of the California Highway Patrol or the Department of Motor Vehicles.

4 BROTHERS TRUCKING LLC
PO Box 5245, Bay Point, CA 94565
+1 (626) 814-5541 | office@4brotherstruck.com

WORKERS' COMPENSATION DECLARATION FORM

(Please check Option 1 OR Option 2)

☐ **OPTION 1**

I certify that the above motor carrier permit-regulated highway carrier does NOT employ any person in a manner subject to the workers' compensation laws of California. If in the future the carrier employs any person subject to those laws, I shall promptly file a Certificate of Workers' Compensation Insurance Coverage or a Certificate of Consent to Self-Insure issued by the Director of Industrial Relations.

☐ **OPTION 2**

I certify that the above motor carrier permit-regulated highway carrier DOES employ persons in a manner subject to the workers' compensation laws of California, and I shall promptly file a Certificate of Workers' Compensation Insurance Coverage or a Certificate of Consent to Self-Insure issued by the Director of Industrial Relations.

Certification

I certify that I have read and understand the above requirements regarding workers' compensation, and that the named carrier is able to and will comply with it. I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Carrier Name: _____

Print Name: _____ Title: _____

SSN or EIN: _____ Date: _____

Signature: _____

WORKERS' COMPENSATION INSURANCE WAIVER

I, the undersigned, a Subhauler Independent Contractor, declare and acknowledge the following:

- I operate my business as an owner-operator and am not required by law to carry workers' compensation insurance.
- I waive any right to file a claim against 4 Brothers Trucking LLC or its contractors under any workers' compensation policy.
- I understand that I am not insured for workers' compensation under the policy of 4 Brothers Trucking LLC or by any of the contractors whose jobsites I may enter in the course of my work for 4 Brothers Trucking LLC.
- Before hiring an employee and assigning him/her to work for 4 Brothers Trucking LLC, I will obtain a workers' compensation insurance policy on behalf of the employee(s) and furnish a certificate of workers' compensation to 4 Brothers Trucking LLC.
- I understand that I am responsible for paying and defending any claim filed against 4 Brothers Trucking LLC or its contractors by any party hired by my firm.

Print Name:

DBA:

Address:

Signature: Date:

4 BROTHERS TRUCKING LLC
PO Box 5245, Bay Point, CA 94565
+1 (626) 814-5541 | office@4brotherstruck.com

CONFIDENTIALITY AGREEMENT

Commencement Date: _____ Subhauler Name: _____

Subhauler and any party employed by Subhauler shall treat as strictly confidential any information accessed in the course of this Agreement - including economic, financial, marketing, operational, technical, or other information not common knowledge among competitors or customers of Prime Carrier - and shall not disclose such information except to government entities as required by law.

During the term of this Agreement, Subhauler shall not directly or indirectly undermine Prime Carrier's relationships with its customers, regardless of whether transportation services have been provided to those customers by Prime Carrier or by another Subhauler.

A breach of this confidentiality provision constitutes a serious offense and shall render Subhauler liable to Prime Carrier for actual and special damages incurred as a result.

This Agreement shall continue in effect until terminated in writing by either party.

BOTH PARTIES, BY SIGNING BELOW, ACKNOWLEDGE READING AND ACCEPTING ALL TERMS HEREIN.

Subhauler

Print Name: _____

Title: _____

Signature: _____ Date: _____

Prime Carrier - 4 Brothers Trucking LLC

Print Name: _____

Title: _____

Signature: _____ Date: _____

CERTIFICATES OF INSURANCE

In addition to all current required forms provided by Prime Carrier, Subhauler must provide the following:

- Certificate of Insurance evidencing Automobile Liability and General Aggregate (including owned and non-owned vehicles), Umbrella/Excess Liability, hired autos per 4 Brothers Trucking LLC requirements, and Bodily Injury & Property Damage - minimum combined single limit of $1,000,000.
- Certificate of Insurance evidencing Automobile Physical Damage / Trailer Interchange insurance on non-owned trailers in the amount specified by Prime Carrier.
- Separate endorsement naming Prime Carrier as Additional Insured under the Automobile Liability policy.
- A provision stating that Prime Carrier will be given thirty (30) days' written notice prior to cancellation or modification of any insurance coverage.

Acknowledgment of Insurance Requirements

Subhauler Company Name:

Insurance Carrier:

Policy #: Effective Date:

Expiration Date: Coverage Limit:

Subhauler

Print Name:

Title:

Signature: Date:

Prime Carrier - 4 Brothers Trucking LLC

Print Name:

Title:

Signature: Date:

4 BROTHERS TRUCKING LLC
PO Box 5245, Bay Point, CA 94565
+1 (626) 814-5541 | office@4brotherstruck.com

RELATIONSHIP WITH PRIME CARRIER STATEMENT

The Subhauler designated below hereby represents and certifies that he/she is not now, has never been, and will never consider being an employee of 4 Brothers Trucking LLC, its successors, affiliates, or assigns. Therefore, Subhauler is not entitled to and has no rights, claims, or interests in any of the employee benefits or considerations that 4 Brothers Trucking LLC may provide.

I have read and completely understand the above statement.

Subhauler Company Name: _____

Print Name: _____ Title: _____

Signature: _____ Date: _____

POWER OF ATTORNEY

This Power of Attorney is part of the 4 Brothers Trucking LLC Trailing Equipment Rental Agreement and is subject to all terms and conditions thereof.

In the event it becomes necessary for 4 Brothers Trucking LLC to pursue compensation or payment for loss or damage to rental equipment leased by the undersigned, this Power of Attorney is necessary for negotiations with insurance carriers, agents, and other parties.

I, the undersigned, hereby duly appoint 4 Brothers Trucking LLC to act as my attorney-in-fact, to sign papers and documents that may be necessary to secure compensation for loss or damage to any trailing equipment leased by the undersigned. The Power of Attorney includes, but is not limited to:

- Claim forms
- Settlement agreements
- Payment vouchers
- Two-party checks (when issued for damages)
- All documents necessary for Lessor to recover compensation in full

"Trailing equipment" includes trailers and their components (tires, brakes, etc.), and where applicable, dump bodies attached to tractors and all associated components (e.g., ten-wheel boxes).

I have read and completely understand the above statement.

Print Name:		Date:	
Signature:		Telephone:	

MASTER CONSTRUCTION TRUCKING - AB 5 DECLARATION

The Trucking Service Provider (Subcontractor/Vendor) hereby declares the following:

1. Subcontractor/Vendor is a legitimate business entity formed as a sole proprietorship, partnership, limited liability company, limited liability partnership, or corporation.

2. Subcontractor/Vendor has a current business license for the location of its principal place of business and/or motor carrier permit in good standing.

3. Upon Contractor's request, Subcontractor/Vendor agrees to provide documentation supporting the business entity's existence.

4. Subcontractor/Vendor is registered as a public works contractor with the Department of Industrial Relations and is familiar with and capable of submitting certified payroll reports as required.

5. Subcontractor/Vendor employs its own truckers/drivers as W-2 employees, unless Subcontractor/Vendor is a sole proprietor operating its own truck for the entire contract.

6. Subcontractor/Vendor has the authority to hire and fire persons providing construction trucking services.

7. Subcontractor/Vendor customarily provides construction trucking services.

8. If Subcontractor/Vendor enters into subcontracts for any work under this Agreement, it shall adhere to AB 5 subcontracting conditions and assume all AB 5 liability.

Subcontracting Conditions

If Subcontractor/Vendor uses other trucking firms, it shall adhere to all of the following:

1. Any firm hired must be a C/S Corp or an LLC filing taxes as an S Corp.

2. Any owner, officer, member, worker, or driver must be a W-2 employee of that corporation or LLC.

3. The business entity must maintain all applicable permits, follow all laws related to the MCP and CARB, and carry all required insurance, including workers' compensation. If an officer is exempt from workers' compensation under California law, occupational accident coverage must be maintained.

4. Any trucking firm or owner used must maintain an active DIR registration.

5. If Subcontractor/Vendor hires a trucking firm and that firm hires further subcontractors, Subcontractor/Vendor shall require those subcontractors to meet all of the above.

Print Name:		Title:	
Signature:		Date:	